DAVID JOHN BRUNI N.O
and
IAN ROBERT MCLAREN N.O.
versus
MASTER OF THE HIGH COURT N.O.
and
METBANK LIMITED

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE, 13 October 2025 & 18 June 2026

Opposed Application-Recognition of foreign proceedings and foreign liquidators in terms of the Insolvency Act [*Chapter 6:07*] and the Common Law

Mr D. Tivader for the applicants
Mr T. Magwaliba for the second respondent

MUSITHU J:

1. Before the court is an application for the recognition of foreign insolvency proceedings relating to an entity called Small and Medium Enterprise Bank Limited (SME Bank), which were conducted under the supervision of the High Court of Namibia. The applicants also sought, in their capacities as joint liquidators appointed in the foreign main proceedings, their recognition as the liquidators of the SME Bank.

2. The applicants also sought a declaration that as liquidators, they were entitled to administer the assets of the SME Bank situated in Zimbabwe and were entitled to apply to the High Court in Zimbabwe for the registration and enforcement of foreign judgments obtained in the Namibian courts.

3. The application was made pursuant to the provisions of s 159 of the Insolvency Act [*Chapter 6:07*] (hereinafter referred to as the Act), as read with s 150 thereof and in terms of the common law.

4. The applicants were appointed as joint liquidators of the SME Bank by virtue of letters issued by the Master of the High Court of Namibia. The first applicant deposed to the main affidavit on his behalf and on behalf of the second applicant.

Background to the application and the applicant's case

5. The SME Bank is a public company duly registered in Namibia in accordance with the Company Laws of the Republic of Namibia. The SME Bank is also duly registered as a commercial bank in terms of the Banking Institutions Act, 1998 of Namibia. The SME Bank does not carry on any banking business in Zimbabwe.

6. The shareholders of the SME Bank were stated as the Government of the Republic of Namibia, through the Namibia Financing Trust (Pty) Ltd (NFT), which holds 65% of the issued shares; Metbank Limited (previously known as Metropolitan Bank of Zimbabwe Limited) which holds 30% of the issued shares; and World Eagle Investments (Private) Limited, holding 5% of the issued shares.

7. On 4 July 2017, the Bank of Namibia (BON), which is equivalent to the Reserve Bank of Zimbabwe, made an urgent chamber application in the Namibian High Court for the winding up of the SME Bank. The application was premised on the grounds that the SME Bank was insolvent in that its liabilities exceeded its assets and/or that the SME Bank was unable to pay its debts and that it was just and equitable that the SME Bank be wound up in terms of the relevant laws.

8. Joined to the application were the SME Bank, the Government of Namibia, the NFT, Metbank, World Eagle Properties, the Minister of Industrialisation, Trade and SME Development of Namibia and the Minister of Finance.

9. The High Court placed the SME Bank under provisional winding up on 11 July 2017, after hearing arguments. On the same day, the Master of the High Court appointed the two applicants as the joint provisional liquidators of the SME Bank in terms of s 375 of the Namibian Companies Act, 2004 (the equivalent of s 41(2) of the Insolvency Act, 2018). The provisional winding up order was confirmed on 29 November 2017.

10. On 15 December 2017, Metbank and World Eagle appealed against the judgment of the High Court. On 23 October 2018, the Supreme Court of Namibia struck the appeal off the roll with costs. The judgment of the Supreme Court remains extant.

11. At the General Meeting of Members and Creditors held at the office of the Master of the High Court on 8 July 2020, it was resolved that the applicants be authorised to collect any outstanding debts due to the SME Bank and to institute proceedings in connection with the recovery thereof.

12. As regards the jurisdiction of this court to deal with the matter, the applicants averred that in accordance with s 167(1) of the Act, the Namibian liquidation proceedings were

"foreign proceedings" as defined in s 150 of the same Act. The applicants were foreign representatives as defined in s 150 of the Insolvency Act.

13. It was further averred that the applicants were not seeking the registration of the Namibian judgments in the present proceedings. Registration would be sought in separate proceedings. In the present proceedings, the applicants were seeking declaratory relief that they may commence the registration and enforcement of the said judgments.

14. The applicants further submitted that in addition to the recognition of the Namibian liquidation proceedings pursuant to Part XXV of the Insolvency Act, their application was also being made pursuant to the common law for their recognition as foreign appointed liquidators, and a declaration that they were entitled to deal with Zimbabwean assets of the SME Bank. Common law recognition involved the exercise of judicial discretion.

15. The applicants were also aware that the SME Bank had no assets in Zimbabwe apart from the judgment debt already alluded to, which they would seek to have registered and enforced. The SME Bank had no creditors in Zimbabwe, and no insolvency proceedings had commenced in Zimbabwe in relation to the SME Bank.

Second Respondent's Case

16. The application was opposed by the second respondent. In its opposing affidavit, the second respondent raised the following points *in limine*. The first point was that there was no valid application before the court because it was statute barred. The second point was that the applicants lacked *locus standi* to institute the present proceedings. The third point was that the application was moot or hypothetical. The fourth point was that the relief sought was incompetent. I shall relate to these preliminary points later in the judgment.

17. The second respondent responded to the merits of the application as follows. It averred that the application fell short of the requirements of the Civil Matters (Mutual Assistance) Act [*Chapter 8:02*], as read with the Civil Matters (Mutual Assistance) (Designated Countries) Statutory Instrument 9/1999. The applicants could not therefore seek to apply for an order that proceedings in Namibia be recognised in Zimbabwe. The applicants could not be recognised as liquidators in Zimbabwe, and neither could the Namibian judgments be enforced in Zimbabwe.

18. It was further averred that the applicants had not successfully established their legal standing for filing the application. The chronology of events given was not relevant as

the applicants were not entitled to the relief sought. The allegations of complying with ss 165 to 171 of the Insolvency Act did not help the applicants either. The applicants had to read and apply the said sections with ss 153 and 156 of the same Act. The law governing the registration and enforcement of judgments in Zimbabwe was clear and Namibian judgments were not registrable in Zimbabwe.

Submissions and analysis of the preliminary points

Validity of the application

19. At the time of the hearing of the matter, the second respondent had filed supplementary heads of argument raising an additional preliminary point concerning the validity of the application. The additional point was to the effect that the applicants' affidavits and the annexures thereto were not properly authenticated for use in Zimbabwean courts. The first preliminary point which had already been raised in the founding affidavit and heads of argument was that there was no valid application or cause of action before the court because the application was statute barred. This was because s 13 of the Insolvency Act did not apply to a bank. It was not in dispute that SME Bank was a banking institution. Equally, the second respondent was also a bank.

20. I shall dispose of the first leg of the preliminary point concerning the proper authentication of the applicants' documents that were placed before the court.

Whether the applicants' documents were properly authenticated

21. In its supplementary heads of argument, the second respondent submitted that the authentication of documents was regulated by r 85 of the High Court rules, 2021. In terms of r 85(2) any documents executed in any place outside Zimbabwe shall be deemed to have been sufficiently authenticated for the purposes of ***"production or use in any court….in Zimbabwe"***, if it is duly authenticated in such foreign place by the signature and seal of office: -

> "(a) of a notary public, mayor or person holding judicial office; or
> (b) in the case of countries or territories in which Zimbabwe has its own diplomatic or consular representative, of the head of a Zimbabwean diplomatic mission, or the deputy or acting head of such mission, a counsellor, first, second or third secretary, a consul general or vice consul….."

22. The affidavits of the first and second applicants were commissioned before one Pierre Erasmus, a notary public on 9 June 2023 in Windhoek, Namibia. The notary public affixed his signature and seal of office. The second respondent argued that this was not sufficient to make the affidavits usable in Zimbabwe for the following reasons:

(a) Zimbabwe had a diplomatic mission in Namibia. The affidavits ought to have been authenticated at the embassy of Zimbabwe in Namibia. This was because the applicable provision in instances where there was an embassy in a place outside Zimbabwe was r 85(2)(b) of the rules.

(b) Authentication in relation to a document was defined in r 85(1) to mean ***"the verification of any signature thereon."*** The word document was defined to mean ***"deed, written contract, power of attorney, affidavit or other writing, but does not include an affidavit sworn before a commissioner."***

(c) In *casu*, the court was not dealing with an affidavit sworn before a commissioner in terms of r 85(5). It was submitted that the signatures of the applicant and the commissioner of oaths and notary public ought to have been authenticated, therefore. They ought to have been verified. The entire application was therefore invalid because that was not done.

23. To support the point, the court was referred to the judgment in *Madaure Jacqueline Tinanshe v University of Limpopo (Turfloop Campus)* ZALMPPHC 2023/57, in which the court held that an affidavit deposed to in Zimbabwe by a Zimbabwean was not found to have been sufficiently authenticated for use in South African courts with the court deciding that the affidavit ought to have been authenticated at the South African embassy in Zimbabwe.

24. It was further submitted that r 85(2)(a) was a general rule which applied to all countries where Zimbabwe did not have an embassy. Rule 85(2)(b) qualified r 85(2)(a) and specifically required resort to the Zimbabwean embassy where such an embassy existed. Any other interpretation would render r 85(2)(b) of no relevance.

25. It was further submitted that the irregularity affected the annexures to the affidavits as well since they were not authenticated in accordance with the rules. The second respondent further submitted that the documents were also not authenticated in accordance with the Hague Convention Abolishing the Requirement of Legalisation for Foreign Public Documents as required by r 85(3). Documents authenticated in accordance with that convention are deemed to be sufficiently authenticated for use in Zimbabwe if such document emanated from a country that is a party to that convention.

26. In his response to the point, Mr *Tivader* for the applicants submitted that the point on whether the documents were properly authenticated was *res judicata* because it was dealt with by CHITAPI J in earlier proceedings involving the same parties. Counsel further

submitted that there was no need to authenticate the signatures of the deponent and the commissioner if regard was had to the definition of document in r 85(1). That definition excluded an affidavit signed before a commissioner of oaths. Mr *Tivader* further submitted that the argument that r 85(2) needed to be complied with was not sustainable. It meant that a deponent had to travel to an embassy for purposes of having their affidavit authenticated. That would create practical problems as embassies would also find it difficult to cope with all the demands for authentication of documents.

27. Mr *Tivader* also submitted that the very legal document that was attached to the application came with a legalisation certificate. The documents therefore complied with the Hague Convention. While Zimbabwe was not a signatory to the convention, Namibia was a signatory and the provision in r 85(3) applied to it.

28. The authentication of documents executed outside Zimbabwe for use in Zimbabwean courts is regulated by r 85 of the High Court rules 2021, which states as follows:

> ***"85. Authentication of documents executed outside Zimbabwe for use within Zimbabwe***
> (1) ……
> (2) Any document executed in any place outside Zimbabwe shall be deemed to be sufficiently authenticated for the purpose of production or use in any court or tribunal in Zimbabwe or for the purpose of production or lodging in any public office in Zimbabwe if it is duly authenticated at such foreign place by the signature and seal of office—
> (a) of a notary public, mayor or person holding judicial office; or
> (b) in the case of countries or territories in which Zimbabwe, has its own diplomatic or consular representative, of the head of a Zimbabwean diplomatic mission, the deputy or acting head of such mission, a counsellor, first, second or third secretary, a consul-general or vice-consul; or
> (c) of any Government authority of such foreign place charged with the authentication of documents under the law of that foreign country; or
> (d) of any person in such foreign place who shall be shown by a certificate of any person referred to in paragraphs (a), (b) or (c) to be duly authorised to authenticate such document under the law of that foreign country; or 89
> (e) of a commissioned officer of the Zimbabwe Defence Forces as defined in section 2 of the Defence Act [*Chapter 11:02*], in the case of a document executed by any person on active service."

29. A document executed in a place outside Zimbabwe must meet the above threshold for it to be deemed to be sufficiently authenticated for use in Zimbabwean courts. The word 'authentication' is defined in r 85 (1) to mean the verification of any signature thereon. The same provision defines 'commissioner' to mean a commissioner of the High Court appointed by the High Court to take affidavits or examine witnesses in any place outside Zimbabwe. The word 'document' is defined to mean *"any deed, written contract, power of attorney, affidavit or other writing, but does not include an affidavit sworn before a commissioner".*

30. The applicants' affidavits were sworn to and signed by the applicants before a notary public who endorsed his seal of office against his signature. The notary public made the following deposition against his signature:

> "I hereby declare that the deponent has sworn to and signed this statement in my presence at Windhoek on this the 9th day of June 2023 and he declared as follows: that the facts herein contained fall within his personal knowledge and that he understands the contents hereof; that he has no objection to taking the oath; that he regards the oath as binding on his conscience and has declared as follows: "I swear that the contents of this sworn affidavit are true and correct, so help me God."

31. The applicants' affidavits were not sworn before a commissioner of oaths, but before a notary public. It is the court's view that the applicants' affidavits therefore fall under the ambit of 'document' as defined by r 85(1). As noted already, the word 'document' specifically excludes an affidavit sworn before a commissioner from its ambit. However, an *'affidavit or other writing'* is specifically included under the definition of document. It follows that an affidavit sworn before a notary public is covered under r 85(2)(a), which provides that a document must be duly authenticated *"at such foreign place by the signature and seal of office-…. (a) of a notary public, a mayor or person holding judicial office.."*

32. The words in r 85(2) (a)-(e) are used disjunctively. They are mutually exclusive alternatives. Each paragraph is separated by the disjunctive word "or". In the ordinary grammatical meaning, the provisions prescribe distinct methods by which a document executed outside Zimbabwe may be authenticated for use in Zimbabwean courts. It follows that compliance with any one of the methods set out in paragraphs (a) to (e) is sufficient to satisfy the requirements of the rule. The court takes the view that the applicants' affidavits were sufficiently authenticated once they were accompanied by the signature and seal of office of the notary public as required by r 85(2)(a). It was therefore not necessary to seek further authentication from the Zimbabwean embassy as submitted by Mr *Magwaliba* for the applicant.

33. Had it been the intention of the lawmakers that documents authenticated by a notary public under r 85(2)(a), must still be further exposed to the same procedure by having them authenticated by an embassy official in terms of r 85(2)(b), then that ought to have been stated in plain language. It is the view of this court that authentication of foreign documents in terms of r 85(2)(a) or r 85(2)(b) achieves the same objective. One can proceed in terms of r 85(2)(a) or in terms of r 85(2)(b).

34. The attachments to the applicants' affidavits were accompanied by a Legalisation Certificate issued out of the High Court of Namibia. The certificates were signed by Elsie Elizabeth Schickerling who is the Registrar of the High Court of Namibia. It was also accompanied by the seal of office and a certificate number. The certificate read in part as follows:

> "**I, ELSIE ELIZABETH SCHICKERLING** of **WINDHOEK** in my capacity as **REGISTRAR** of the **HIGH COURT OF NAMIBIA**, by lawful authority duly appointed, of whom all acts, instruments, documents and writings subscribed by me in that capacity, full of faith and credence are given in the Republic of Namibia, and there out, do hereby certify and attest that….."

35. It is common cause that the office of the registrars of superior courts is now considered to be a judicial office because of the nature of the duties they are required to discharge in terms of the rules of court. The office of the registrar is no longer confined to administrative functions. It also requires them to exercise quasi-judicial functions though they may be low key. It is the court's view that the legalisation certificates constituted official verification that the annexures emanated from the records of the High Court of Namibia. The court is thus satisfied that such certification provided further confirmation of the authenticity of the documents.

36. In any event, the documents would still be deemed to be sufficiently authenticated in terms of r 85(3), which requires compliance with the Hague **Convention Abolishing the Requirement of Legalisation for Foreign Public Documents** (also known as the **Apostille Convention).** The convention was intended to simplify the procedure through which a document, issued in one of the contracting states, can be certified for legal purposes in the other contracting states of the convention. It was not disputed that Namibia is a party to the convention although Zimbabwe is not. Rule 85(3) therefore provides an avenue through which documents authenticated in accordance with the requirements of the convention are deemed to sufficiently authenticated for use in Zimbabwean courts by virtue of that provision.

37. It is the court's view that the interpretation advanced by the second respondent would effectively require litigants who have already authenticated documents before a notary public to undertake a second authentication process before Zimbabwean diplomatic officials. Such a requirement is neither expressed nor implied in Rule 85. Courts must give effect to the language chosen by the rule-maker and not impose procedural burdens beyond those prescribed by law.

38. In view of the foregoing, the court determines that there is no merit in the first leg of the second respondent's objection.

Whether the application was statute barred

39. The second leg of the second respondent's preliminary point was that the application was statute barred because s 13 of the Insolvency Act did not apply to a bank. It was submitted that although the applicants approached the court wearing the hat of liquidators, they were in fact the SME Bank.

40. It was further submitted that the application was against the second respondent, a debtor, which also happened to be a bank. There was therefore no valid cause of action against the second respondent. Recognising the foreign liquidation proceedings would be contrary to public policy of Zimbabwe which was clear that the liquidation or winding up of a bank was regulated by the Banking Act [*Chapter 24:20*].

41. In response, the applicants argued that they were not the SME Bank itself, but its liquidators. Further, it was submitted that the SME Bank was not a bank as defined in terms of the Banking Act [*Chapter 24:20*]. It did not carry on banking business as defined in the Banking Act. For that reason, s 13 of the Insolvency Act had no application.

42. It was further submitted that there was no legal provision in Zimbabwean law which provided that where a Zimbabwean bank was a debtor of an insolvent company, then the Insolvency Act did not apply to the insolvency proceedings.

43. In his oral submissions, Mr *Tivader* submitted that the mere fact that the second respondent was a bank was not even relevant. The second respondent was not the debtor as envisaged under part III of the Act.

44. The preliminary point is resolved by reference to s 13 of the Act which the second respondent submitted to have the effect of voiding the present application since it did not apply to banks. The provision is worded as follows:

> **"PART III**
> ACT HAS LIMITED APPLICATION TO CERTAIN TYPES OF DEBTOR
> **13 Act has limited application to certain types of debtor**
> (1) This Act does not apply in respect of—
> (a) an insurance company as defined in the Insurance Act [Chapter 24:07]; or
> (b) a bank as defined in the Banking Act [Chapter 24:20];
> (c) ……;
> (d……..;

except insofar as it is made applicable by the provisions of the aforesaid legislation."

45. The above provision qualifies the type of debtors that fall within the ambit of the Act. For purposes of the present application, it must be demonstrated that the applicants were both a debtor and a bank as defined in terms of the Banking Act, for that provision to be engaged. The word 'debtor' is defined under s 2 of the Act to mean *"any person or entity that is able to incur debt whose estate has been liquidated….."*. The provision does not deal with an ordinary debtor. It is concerned with a debtor whose estate is being wound up.

46. Further, it must also be demonstrated that the debtor is a bank as defined under the Banking Act. The applicants are liquidators of the SME Bank. They are not the bank itself. The mere fact that they are liquidators of the bank does not transform them into one. Further, it is common cause that SME Bank is a Namibian Bank. It is not a bank as defined in the Banking Act which applies to Zimbabwean Banks.

47. The second respondent's counsel extended the submission to the second respondent, arguing that it was also a debtor and a bank. That argument overstretches the import of s 13. That provision applies to a debtor that is being wound up. It does not apply to the debtor of a bank that is being wound up. The second respondent was not being wound up. It was therefore not the debtor and the bank referred to in s 13. The point is accordingly dismissed for lack of merit.

48. The second respondent further submitted that recognition should be refused because the conduct of the liquidation proceedings would be contrary to Zimbabwean public policy. Public policy constitutes a narrow exception to the recognition of foreign proceedings and foreign judgments. It is not sufficient for a party merely to disagree with the outcome reached by a foreign court or with litigation decisions taken by a liquidator. There must be a clear demonstration that recognition would violate fundamental principles of justice, legality or morality recognised by Zimbabwean law.

49. No such evidence has been placed before the court. The second respondent has therefore failed to establish any public policy ground warranting refusal of recognition.

The Applicants' *Locus Standi*

50. It was contended that the applicants lacked *locus standi* to institute the present proceedings. The registration of foreign judgments was regulated by the Civil Matters (Mutual Assistance) Act [Chapter 8:02], as read with the Civil Matters (Mutual Assistance) (Designated Countries) Order Statutory Instrument 9 of 1999. The Civil

Matters (Mutual Assistance) Act dealt with applications for registration of a foreign judgment, grant or refusal of such application and registration of foreign judgments and the effect of registration in designated countries. That law required that such judgments should emanate from a designated country. Namibia was not a designated country.

51. For that reason, it was argued that the applicants did not have the requisite *locus standi* to institute the current proceedings wherein they intended to have the foreign judgments recognised for purposes of registration in Zimbabwe.

52. In response, it was submitted on behalf of the applicants that it was not only judgments from designated countries that would be recognised by this honourable court. The Civil Matters (Mutual Assistance) Act made provision for the application of any other law. It was further submitted that while the Minister was empowered to declare that the recognition procedures set out in the law applied to certain countries by way of designating such countries in the Gazette, the Minister had no power to abolish the common law in relation to non designated countries.

53. In addition to seeking their recognition pursuant to Part XXV of the Insolvency Act, the applicants also premised their claim on the common law in the alternative. Section 25 of the Civil Matters (Mutual Assistance) Act states as follows:

> "25 Act not to derogate from other laws
> This Act shall be regarded as additional to, and not as limiting the provisions of any other law relating to the recognition and enforcement of foreign judgments, the service of process or the taking of evidence, whether on commission or otherwise."

54. The above provision clearly shows that the Civil Matters (Mutual Assistance) Act did not oust existing laws relating to the recognition and enforcement of foreign judgments. While Namibia is not a designated country under the Civil Matters (Mutual Assistance) (Designated Countries) Order, the applicants can legitimately approach this court under the common law.[1] The preliminary point is accordingly dismissed for lack of merit.

Mootness

55. The second respondent's third preliminary point was that the application was moot or hypothetical. This was because in the event of the application succeeding, the court would be disabled from entertaining the matter for the registration of a foreign judgment since Namibia was not a designated country. The application therefore ought to fail on that basis.

[1] See also *Tiiso Holdings (Pvt) Ltd v ZISCO* HH 95/10

56. This was the same argument that was raised in the preceding point on the absence of *locus standi*. The point is dismissed for the same reasons given in the point on absence of *locus standi*. The mere fact that Namibia was not designated country under the Civil Matters (Mutual Assistance) (Designated Countries) Order does not preclude the applicants from approaching the court under the common law.

That the relief sought is incompetent

57. The fourth point was that the relief sought was incompetent because of the same reason that Namibia was not a designated country and any judgments or proceedings emanating from that jurisdiction could not be registered or enforced in Zimbabwe.

58. The point raises the same issue of the designation of Namibia in terms of the Civil Matters (Mutual Assistance) (Designated Countries) Order. The point is also dismissed for the same reasons given in disposing of the point on absence of *locus standi* and mootness.

The Merits

59. Counsel chose to abide by their heads of argument, because their addresses on the preliminary points had touched on the merits of the matter. In his brief address on the merits, Mr *Magwaliba* submitted that to the extent that the application was motivated under the common law, there was no evidence from Namibia to show that the judgment sought to be registered was final. This was a requirement in terms of s 25(1) of the Civil Evidence Act[2].

60. In his brief response, Mr *Tivader* submitted that the point made by Mr *Magwaliba* on the need for finality was being raised for the first time. Be that as it may, the judgment that the applicants wanted registered was final in Namibia, it having been dealt with by the Supreme Court of that country.

61. The applicants' claim is in the main, for the recognition in Zimbabwe of the winding up proceedings of the SME Bank as well as their appointment as liquidators. The present application is not for the registration and enforcement of the foreign judgments obtained in Namibia. That application is not before this court. The court must therefore decline the invitation to determine the propriety of an application for the registration and enforcement of foreign judgments on public policy or some other grounds when that application is not before it.

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[2] [*Chapter 8:01*]

62. In its heads of argument, the second respondent submitted that under Zimbabwean common law, judgments which involved the enforcement of a foreign State's penal or revenue laws were not recognisable or enforceable in Zimbabwean courts. It was further submitted that the judgment that the applicants wanted registered included elements of public law enforcement particularly penal or revenue law implications arising from Namibia's banking regulatory framework. Consequently, such an application had to fail. That submission must, with respect, be made in the context of the application to register the foreign judgment for purposes of execution in Zimbabwe. I have already stated that such application is not before this court.

63. The issue of the winding up of the SME Bank was resolved by both the High Court and the Supreme Court of Namibia. The second respondent was a party to those proceedings. It was not suggested that the proceedings yielding that result were irregular, and neither was it suggested that following the Supreme Court decision on appeal, the very issue of the winding up of the SME Bank that was before the two courts would be the subject of further proceedings in Namibia. The appointment of the applicants as liquidators of the SME Bank in Namibia was also not contested.

64. The case of *Tiiso Holdings (Pvt) Ltd v Zimbabwe Iron & Steel Company Limited*[3], summarised the general requirements for the recognition and enforcement of foreign judgments at common law as follows: (i) the foreign court in question had the requisite international jurisdiction or competence according to our law; (ii) the judgment concerned was final and has the effect of *res judicata* according to the law of the forum in which it was pronounced; (iii) the judgment must not have been obtained by fraudulent means; (iv) it must not entail the enforcement of a penal or revenue law of the foreign State; (v) it must not be contrary to public policy in this country; and (vi) the foreign court must have observed the minimum procedural standards of justice in arriving at the judgment. That position of the law was endorsed in *Yubin Lin & Anor v Barbara Cook & 4 Ors*[4].

65. Although the remarks in the above authority were made in the context of the enforceability of a foreign judgment in Zimbabwe, they apply with persuasive force in the circumstances of the present matter. The court is satisfied that the common law requirements concerning the Namibian insolvency proceedings and the appointment of the applicants as liquidators were satisfied and the application must succeed.

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[3] HH 95/10
[4] SC 31/23 at p 5 of the judgment

Costs of suit

66. The general rule is that costs follow the event. The applicants did not claim an order of costs in the event of the application succeeding. That position was obviously influenced by the nature of the proceedings before the court. The position was properly taken. The present application is only but the first step of a legal process that must be embarked on in the Zimbabwean courts.

Resultantly, it is ordered that:

1. The winding up proceedings of the Small and Medium Enterprises Bank Limited (in liquidation) which commenced with the Order of the High Court of Namibia dated 11 July 2017 under case number HC-MD-CIVMOT-GEN-2017/00227 are hereby recognised as foreign main proceedings for the purposes of Part XXXV of the Insolvency Act [*Chapter 6:07*].
2. The applicants, in their capacity as Joint Final Liquidators appointed in the foreign main proceedings referred to in paragraph 1 of this order, are hereby recognised as liquidators of the Small and Medium Enterprise Bank Limited (in liquidation).
3. It is declared that the applicants, in their capacity as liquidators, are entitled to administer the assets of the Small and Medium Enterprise Bank Limited (in liquidation) situated in Zimbabwe and may apply to the High Court of Zimbabwe for registration and enforcement of foreign judgments obtained in the Courts of Namibia, including the judgments issued on 29 October 2020 under case number HC-MD-CIV-MOT-GEN-2019/00105 and on 25 January 2021 under case number HC-MD-CIV-ACT-OTH-2019/02110.
4. There shall be no order as to costs.

Musithu

J…….

Mtetwa & Nyambirai, legal practitioners for the applicants
Tarugarira Sande Attorneys, legal practitioners for the second respondent